4813

Executive Order

Documents Required of Aliens Entering the United States

By virtue of the authority vested in me by the Act of Congress approved May 22, 1918, entitled, "An Act to Prevent in Time of War Departure from and Entry into the United States Contrary to the Public Safety", as extended by the Act of Congress of March 2, 1921, entitled, "An Act making appropriations for the Diplomatic and Consular Service for the fiscal year ending June 30, 1922", and with reference to the Act of Congress of May 26, 1924, known as the "Immigration Act of 1924", I hereby prescribe the following regulations governing the entry of aliens into the United States. (In addition to the general immigration laws and regulations, there are special laws and regulations governing the admission of Chinese.)

I

Immigrants:

They must present immigration visas, quota or non-quota, in accordance with the requirements of the Immigration Act of 1924, except—

(1) Children born subsequent to the issuance of the immigration visa of the accompanying parent. (Sec. 13 (a) (1), Immigration Act of 1924.) Such children are not required to present documents of any kind;

(2) Aliens who have previously been admitted legally into the United States, have departed therefrom and returned within six months, not having proceeded to countries other than Canada, Newfoundland, St. Pierre, Miquelon, Bermuda, Mexico, Cuba, and other Islands included in the Bahama and Greater Antilles groups, are not required to present passports, visas, or permits to reenter.

(3) Aliens, other than those specified in (2) above, who have previously been admitted legally into the United States, have departed therefrom, and are returning from a temporary visit abroad, may present, in lieu of immigration visas, permits to reenter, issued pursuant to Section 10 of the Immigration Act of 1924.

With reference to Section 28 (c) of the Immigration Act of 1924, the Executive Secretary of the Panama Canal, Balboa Heights, Canal Zone, is hereby authorized to issue immigration visas to aliens coming to the United States from the Canal Zone; the Collector of Customs of the Philippine Islands is hereby authorized to issue immigration visas to aliens coming to the United States from the Philippine Islands; the Governor of American Samoa is hereby authorized to issue immigration visas to aliens coming to the United States from American Samoa; and the Governor of Guam is hereby authorized to issue immigration visas to aliens coming to the United States from Guam.

II

Non-Immigrants:

With the exceptions hereinafter specified, they must present passports or official documents in the nature of passports issued by the governments of the countries to which they owe allegiance, duly visaed by consular officers of the United States;

Exceptions:

(1) Persons in transit through the United States to a foreign destination. They may present transit certificates according to regulations prescribed by the Secretary of State.

(2) Aliens who are through passengers on vessels touching at ports of the United States. In this connection the term "United States" is to be construed as in Section 1 of the Immigration Act of 1917. They may land temporarily, under regulations prescribed by the Department of Labor, without documents of any kind.

(3) Passports may include any person or persons whose inclusion is proper under the regulations of the issuing government and whose photographs are attached thereto.

(4) Citizens of St. Pierre and Miquelon and French citizens domiciled therein; citizens of Canada, Newfoundland, Bermuda, the Bahamas, and British possessions

in the Greater Antilles, and British subjects domiciled therein; citizens of Panama, Mexico, Cuba, Haiti, and the Dominican Republic. Such persons may pass in transit through the United States, or enter the United States temporarily, without passports or visas.

(5) Seamen. Masters of vessels of all nationalities sailing for a port of the United States must submit for visa a list of all the alien members of the vessel's crew to the American consular officer at the port from which the vessel commences its voyage. If there is no American consular officer stationed at that port, the crew list should be submitted at the first port of call (if the vessel touches at any other port) where an American consular officer is located. This does not refer to consular agents, who are not authorized to visa crew lists. However, this paragraph has no application to members of crews of vessels sailing between ports of the United States and ports of Canada, Newfoundland, St. Pierre and Miquelon and not touching at ports of other countries. Such persons are not required to be documented.

When a vessel sails from a port where no American Consul is stationed, but which is within a few hours reach by mail of an American Consulate, so that unreasonable delay and serious loss would not result from referring the crew list to such Consulate, it should be referred thereto for visa.

The visa of a Shipping Commissioner in the Canal Zone shall be accepted as equivalent to the visa of an American Consul.

If an alien seaman whose name is not included in a visaed crew list arrives at a port of the United States he shall not be allowed to land except upon the permission of the Secretary of State.

(6) Aliens making round-trip cruises from American ports without transshipment from the original vessel to another one while en route, provided the original contract for passage calls for transportation from an American port to the ports included in the cruise, and return to either the original or another American port, require no visas for reentry into the United States.

(7) Aliens of no nationality, and those who, when they apply for visas, are outside of the territories of the countries to which they owe allegiance and who, for any reason, are unable to obtain passports or documents in the nature of passports issued by the governments of such countries, and aliens bearing passports issued by governments not recognized by the United States. They may enter the United States with documents showing their origin and identity, visaed by consuls, under regulations prescribed by the Secretary of State.

III

(1) Aliens entering the Philippine Islands, except those referred to in II (2), must present passports or documents in the nature of passports, duly visaed by consular officers of the United States; but seamen on vessels of all nationalities touching at a port of the Philippine Islands are not required to be documented. Masters of such vessels are, therefore, not required to present visaed crew lists.

(2) Aliens entering any other American possessions not included under Section 28 (a) of the Immigration Act of 1924, do not require documents of any kind.

The definition contained in Section 28 of the Immigration Act of 1924 shall be regarded as applicable to this order, except as herein otherwise specified.

The Secretary of State and the Secretary of Labor are hereby authorized to make such additional rules and regulations, not inconsistent with this order, as may be deemed necessary for carrying out the provisions of this order and the statutes mentioned herein.

This order shall take effect April 1, 1928, and shall supersede the Executive Order of July 12, 1926, entitled "Documents Required of Aliens Entering the United States", but shall not supersede the Executive Order of July 14, 1924, entitled "Documents Required of Aliens Entering the United States on Airships", the Executive Order of May 13, 1927, entitled "Documents Required of Bona Fide Alien Seamen Entering the United States as Passengers", or the Executive Order of July 11, 1927, relative to Article XXII of the Consular Regulations of 1896.

CALVIN COOLIDGE

THE WHITE HOUSE,
February 21, 1928.

[No. 4813]

U. S. GOVERNMENT PRINTING OFFICE: 1928 J89698